

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****Index No.:****ELLIOT FERNANDEZ,****Date Purchased:**

Plaintiffs,

Date Filed:

– against –

SUMMONS**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE JASON MERCHAN,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE,**Plaintiff designates Bronx County as the
place of trial. The basis of venue is the
action arose in Bronx County.

Defendant(s).

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: Bronx, New York
April 2, 2024
NEIL WOLLERSTEIN, ESQ.Attorney for Plaintiff
895 Sheridan Avenue
Bronx, New York 10451
(718) 588-1300

TO: HON. SYLVIA O. HINDS-RADIX
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

DETECTIVE JASON MERCHAN (Shield No. 6462)
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

ELLIOT FERNANDEZ,**INDEX NO.:**

Plaintiff,

— against —

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE JASON MERCHAN,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE,****VERIFIED COMPLAINT**

Defendant(s).

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **LUIS GUERRERO** was and is a resident of County of the Bronx, City and State of New York.

2. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.

4. That on and prior to 8/17/23 and at all times hereinafter mentioned the defendant, **DETECTIVE JASON MERCHAN** (Shield No. 6462), hereinafter referred to as “MERCHAN” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 8/17/23 and at all times hereinafter mentioned the defendant, **POLICE OFFICER JOHN DOE**, hereinafter referred to as “DOE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent,

servant and employee of the CITY and NYPD.

6. That on and prior to 8/17/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 8/17/23, at approximately 10:30 a.m., several police officers including but not limited to MERCHAN, DOE and ROE were on duty and in the vicinity of 2663 Heath Avenue, County of Bronx, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 8/17/23, at approximately 10:30 a.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants MERCHAN, DOE and ROE were all assigned to NBBX.

10. That on and prior to 8/17/23 MERCHAN, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 8/17/23, at approximately 10:30 a.m., and all relevant times herein after, MERCHAN, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 8/17/23, at approximately, 10:30 a.m., Plaintiff **ELLIOT FERNANDEZ** was lawfully in the vicinity of 2663 Heath Avenue, County of Bronx, State of New York and doing

nothing illegal, improper or acting suspicious in anyway. In point of fact, Plaintiff **ELLIOT FERNANDEZ** was not in possession of any contraband on his person, no contraband was in plain view and Plaintiff was entirely unaware of any contraband on the premises if there were was indeed any at all (which there was not). Moreover, Plaintiff was not the leaseholder nor a resident of any apartment within 2663 Heath Avenue, County of Bronx.

13. That on 8/17/23, at approximately, 10:30 a.m., in the vicinity of 2663 Heath Avenue, County of Bronx, State of New York, **MERCHAN, DOE and ROE**, absent an arrest warrant, probable cause, reasonable cause or any legal justification, and based on fraud, perjury and misrepresentations, approached Plaintiff **ELLIOT FERNANDEZ** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

14. Upon information and belief **MERCHAN, DOE and ROE** knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **ELLIOT FERNANDEZ**.

15. That Plaintiff **ELLIOT FERNANDEZ** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

16. Thereafter, Plaintiff **ELLIOT FERNANDEZ** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

17. Plaintiff **ELLIOT FERNANDEZ** sustained physical and emotional pain and injuries as a result of this incident.

18. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **ELLIOT FERNANDEZ**

caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

19. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

20. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York and defendants have not noticed Plaintiff for a hearing pursuant to Section 50-h of the General Municipal Law. Plaintiff is ready, willing and able to submit to a 50-h examination if same is requested within a reasonable time frame from the filing of Notice of claim.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIOT FERNANDEZ

21. Plaintiff **ELLIOT FERNANDEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 20 with the same force and effect as if fully set forth at length herein.

22. That on or about 8/17/23, at approximately 10:30 a.m., the Plaintiff **ELLIOT FERNANDEZ** was without just cause, probable cause or provocation, based on fraud, perjury and

misrepresentations, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, MERCHAN, DOE and ROE, their agents, servants and/or employees, and in particular, by MERCHAN, DOE and ROE.

23. That on or about 8/17/23, at approximately 10:30 a.m., the Plaintiff **ELLIOT FERNANDEZ** while lawfully in the vicinity of 2663 Heath Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, MERCHAN, DOE and ROE of having a crime or crimes.

24. That on or about 8/17/23, and upon arresting the Plaintiff **ELLIOT FERNANDEZ** and depriving him of his liberty, CITY, NYPD, MERCHAN, DOE and ROE took the Plaintiff **ELLIOT FERNANDEZ** to a police station in the County of Bronx and entered him on the records as under arrest.

25. That on or about 8/17/23, the CITY, NYPD, MERCHAN, DOE and ROE further caused Plaintiff **ELLIOT FERNANDEZ** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

26. That on or about 8/17/23 Plaintiff **ELLIOT FERNANDEZ** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

27. That at all times hereinafter mentioned the actions of CITY, NYPD, MERCHAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

28. That by reason of the foregoing, Plaintiff **ELLIOT FERNANDEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIOT FERNANDEZ

29. Plaintiff **ELLIOT FERNANDEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 28 with the same force and effect as if fully set forth at length herein.

30. That on or about 8/17/23, a criminal complaint was issued by the CITY, NYPD, MERCHAN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification and based on fraud, perjury and misrepresentations.

31. That on or about 8/17/23 a criminal action against Plaintiff **ELLIOT FERNANDEZ** was commenced by CITY, NYPD, MERCHAN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That solely as a result of the aforesaid, the Plaintiff **ELLIOT FERNANDEZ'S** life was interfered with.

33. That the criminal action against Plaintiff **ELLIOT FERNANDEZ** was continued for an extended period of time by defendants with malice and bad faith.

34. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **ELLIOT FERNANDEZ**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

35. That the criminal action against Plaintiff **ELLIOT FERNANDEZ** was terminated favorably by dismissal.

36. That the actions of CITY, NYPD, MERCHAN, DOE and ROE as described above

were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

37. That by reason of the foregoing, Plaintiff **ELLIOT FERNANDEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIOT FERNANDEZ**

38. Plaintiff **ELLIOT FERNANDEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 37 with the same force and effect as if fully set forth at length herein.

39. That on or about 8/17/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **ELLIOT FERNANDEZ** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, MERCHAN, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

40. That on or about 8/17/23 CITY, NYPD, MERCHAN, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, MERCHAN, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **ELLIOT FERNANDEZ** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **ELLIOT FERNANDEZ** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **ELLIOT FERNANDEZ** and caused such battery in and about his head, neck, back, body and limbs.

41. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the

defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **ELLIOT FERNANDEZ** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

42. That as a result of the aforesaid assault and battery the Plaintiff **ELLIOT FERNANDEZ** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

43. That at all times hereinafter mentioned the actions of CITY, NYPD, MERCHAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

44. That by reason of the foregoing, Plaintiff **ELLIOT FERNANDEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIOT FERNANDEZ**

45. Plaintiff **ELLIOT FERNANDEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 44 with the same force and effect as if fully set forth at length herein.

46. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to MERCHAN, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police

officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

47. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

49. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

50. That by reason of the above, the Plaintiff **ELLIOT FERNANDEZ** was injured in mind and body as she was arrested, prosecuted and rendered sick, sore, and damaged.

51. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

52. That by reason of the foregoing, Plaintiff **ELLIOT FERNANDEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIOT FERNANDEZ**

53. Plaintiff **ELLIOT FERNANDEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-52 with the same force and effect as if fully set forth at length herein.

54. In arresting Plaintiff **ELLIOT FERNANDEZ**, police officers including but not limited to MERCHAN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

55. In arresting Plaintiff **ELLIOT FERNANDEZ**, police officers including but not limited to MERCHAN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **ELLIOT FERNANDEZ** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

56. As a result of the abuse of process by defendants herein, Plaintiff **ELLIOT FERNANDEZ** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

57. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

58. That by reason of the foregoing, Plaintiff **ELLIOT FERNANDEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIOT FERNANDEZ

59. Plaintiff **ELLIOT FERNANDEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 58 with the same force and effect as if fully set forth at length herein.

60. That on 8/17/23, at approximately 10:30 a.m., within the vicinity of 2663 Heath Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to MERCHAN, DOE and ROE who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

61. The CITY and NYPD on a consistent and constant basis, have a policy or a program, whether implicit or explicit, that its' agents, employees and others acting under the direction of defendants including but not limited to MERCHAN, DOE and ROE, with or without a valid search warrant, with or without lawful entry onto private real property or a premises such as an apartment, unlawfully detain, harass, seize, search, destroy and illegally remove personal property and thereafter arrest individuals within such a premises who are neither leaseholders nor owners of said premises (as herein) and who are only present in a room on said real property where contraband is not in plain view.

62. The above must be considered, as the facts herein suggest, when an individual is in a room on a premises where contraband is not in plain view, it cannot be said, as a matter of law, that said individual is to be in actual or constructive possession of contraband nor in possession pursuant to a Penal Law statutory presumption. Nonetheless, defendants on a consistent and constant basis unlawfully stop, seize, search and arrest individuals, such as the Plaintiff herein, in such a scenario

even though the stop, seizure and arrest of said individual, including Plaintiff herein, is lacking in reasonable cause, probable cause or legal justification.

63. The foregoing acts, omissions and systemic failures are customs and policies of the CITY and NYPD which caused the police officers herein to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff unlawfully, commit an assault and battery to Plaintiff's person under the belief that said police officers would not suffer any disciplinary actions for their improper and unconstitutional conduct.

64. The CITY and NYPD'S failure to train its police officers to distinguish between individuals who are lessee's and/or reside at a premises for a sufficient length of time as evidenced by utility bills in their name, letters or mail addressed to them at the premises, as opposed to individuals who are mere guests or visitors who do not have the right to exercise dominion and control over the premises as evidenced by their not having any furniture in the premises, their name on the lease, their name on a utility bill or mail addressed to them as well as having no personal belongings within the premises that demonstrate something more than a temporary or overnight guest, are all factors that the CITY and NYPD have consistently and constantly ignored in a deliberate and malicious fashion.

65. As the same fact patterns are present over the past several years with alarming frequency, it is apparent and obvious that a pattern by the CITY and NYPD has developed and is in place demonstrating continued violations of individuals similarly situated to the Plaintiff herein. The pattern demonstrates either a defacto policy or custom that exists to allow this behavior by failing to discipline its officers or that this is a custom of its police officers who have no and/or insufficient training and/or no proper supervision and/or disciplinary penalties assessed against them for continued acting in an unconstitutional manner.

66. The below examples demonstrate a small sample of the pattern practice and custom of deliberate indifference by the CITY and NYPD by arresting innocent individuals who are merely present in a location when contraband is not in plain view and have no legal ties to the premises being searched either with or without a search warrant, either legally or illegally.

a. On 10/22/10, Joanne BROWN, Andrea Doby and Tameka Gunter were inside apartment 4E at 1684 Nelson Avenue, Bronx, NY. They were doing nothing illegal or improper and were simply visiting a friend. None of the aforementioned individuals were leaseholders or had any legal connections to the premises. All 3 individuals were only in the apartment for a short while when all of a sudden several police officers entered the apartment and arrested all of the occupants. Despite several requests the officers never presented a search warrant. All 3 of the above-mentioned individuals were charged with possession of a controlled substance in the seventh degree despite the fact that none of them ever were aware of or had any knowledge of any contraband in the apartment and contraband was not in plain view at anytime. All charges were eventually dismissed.

b. On 2/8/08, Tony Mizell was inside apartment 2 at 950 Saint John Avenue, Bronx, NY. Mr. Mizell was not a leaseholder of said premises and had no legal connection to the apartment. He was simply an overnight guest with his wife and small child. All of a sudden, in the early morning hours, several police officers rushed into the apartment and arrested all of the occupants for possession of a weapon. A search warrant was never presented. The weapon was located in a back bedroom inside a closet within a coat pocket. Mr. Mizell had no connection to the gun, the bedroom or the closet. He was arrested and prosecuted for several months even though the owner of the gun pled guilty in Federal Court shortly after 2/8/08. Eventually all charges were dismissed against Mr. Mizell.

c. On 1/10/10 Gregory Jacobus was inside apartment 4 located at 2290 Davidson Avenue,

Bronx, New York. Mr. Jacobus was visiting his chess teacher. He was simply an overnight guest in apartment 4 and was not a leaseholder and had no legal rights to the apartment. Early in the morning while Mr. Jacobus was in the shower, several police officers rushed into the apartment and arrested Mr. Jacobus and his chess teacher. A search warrant was never presented. Mr. Jacobus never saw any contraband in the apartment at anytime and had no knowledge of any contraband if there was indeed any. After spending several days in jail, a Grand Jury dismissed all charges against Mr. Jacobus.

d. On 6/12/07 Joanne Reyes was inside apartment 1F at 1530 Sheridan Ave, Bronx, NY. In the early morning hours Ms. Reyes heard a loud bang and several people rushed into her apartment. Ms. Reyes thought she was getting robbed until she realized the individuals were police officers. Even though Ms. Reyes was not a leaseholder to the apartment and no contraband was in plain view at anytime and Ms. Reyes never saw any contraband within the apartment at anytime, she was handcuffed, arrested and taken to a local precinct and then central booking. Her pleas for her medications were summarily ignored throughout the entire time she was detained. After being prosecuted for several months the case was eventually dismissed.

e. On 4/4/08 Shakenia Garlick was inside apartment 7B at 2487 Grand Avenue, Bronx, NY. In the early morning hours several police officers broke down the front door and entered her apartment. No search warrant was ever presented. Ms. Garlick had no knowledge of any contraband in the apartment and same was never in plain view. Despite aggressive questioning by the officers Ms. Garlick insisted that they were making a mistake and were, perhaps, in the wrong apartment. She was arrested for possession of a controlled substance. The substance was her pre-natal vitamins. The case was dismissed by the District Attorney's Office when the laboratory analysis indicated negative for a controlled substance.

f. On 8/5/09 Edward Benitez was inside apartment 5E visiting his friend at 894 Rogers Place. It was the early afternoon and Mr. Benitez was inside the apartment for only a few minutes. All of a sudden there was a knock at the door and several police officers rushed into the apartment. Despite the fact that Mr. Bentiez was not a resident of the apartment, not a leaseholder and had no legal connection to the apartment he was arrested for possession of marihuana which was neither on his person nor in plain view in any part of the apartment. After several court appearances all charges were dismissed against him

g. On 1/18/12 Jennifer Tarantino was inside apartment E1N at 3034 Grand Concourse, Bronx, NY. She was visiting her boyfriend who was renting out the spare bedroom to another individual. Around 10:00 p.m. Ms. Tarantino was awoken by a loud noise and several police officers were pointing their guns at her as she lie in bed. Even though Ms. Tarantino was not a leaseholder of the apartment and had no legal rights to the apartment she, as an overnight guest, was arrested and charged with possession of a controlled substance in the third degree. She was never presented with a search warrant despite numerous requests and never saw anything illegal in plain view. All charges against her were eventually dismissed.

h. On 11/18/11 Sabrina Souffront was in apartment 4A located at 1465 Washington Ave, Bronx, NY. Ms. Souffront was visiting a friend and was not a leaseholder of the apartment and had no legal rights to said apartment. No contraband was ever in plain view and she had no knowledge of any contraband within the apartment. In the early morning hours, Ms. Souffront heard a loud bang at the front door and several police officers rushed into the apartment and detained all of the occupants. Ms. Souffront later learned that in one of the bedrooms, within a closet, was a small amount of narcotics. Ms. Souffront was completely unaware of the existence of anything illegal in the apartment and in fact was never even in that particular bedroom during her visit. She was

arrested and held in jail for over 24 hours. Eventually all charges against her were dismissed.

i. On 7/29/11 Ismael Velez and Michael Concepcion were inside the basement apartment at 512 East 162nd Street, Bronx, NY. The basement apartment was a music studio and Velez and Concepcion were recording. In the early morning hours, all of a sudden, several police officers rushed into the studio and assaulted Velez and Concepcion and arrested them for possession of marihuana. Velez and Concepcion were not leaseholders and had no legal ties to the basement apartment. In addition, Velez and Concepcion never saw any illegal substances in plain view at anytime they were in the recording studio. All charges were eventually dismissed.

j. On 6/17/10 Samantha Morales was inside apartment 5B located at 1000 Simpson Street, Bronx, NY. In the early morning hours, all of a sudden several police officers rushed into the apartment and arrested Ms. Morales and all of the occupants. Ms. Morales was not a leaseholder of the apartment. She was charged with possession of marihuana even though marihuana was never found and certainly not in plain view at anytime. Despite requests a search warrant was never presented. The District Attorney's Office declined to prosecute Ms. Morales.

k. On 6/16/10 Coty Morales was inside apartment 4K at 995 Simpson Street, Bronx, NY. In the early morning hours he heard a bang on the door and several police officers rushed into the apartment. Mr. Morales is not a leaseholder of the apartment and has no legal rights to same. He was arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

l. On 6/16/10 Christopher Hernandez was inside apartment 4H at 995 Simpson Street, Bronx, NY. In the early morning hours he heard a bang on the door and several police officers rushed into the apartment. Mr. Hernandez is not a leaseholder of the apartment and has no legal

rights to same. He was arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

m. On 2/1/12 Hector Figueroa, Sr., Hector Figueroa, Jr. and Laurita Figueroa were inside apartment 6A at 360 Morris Avenue, Bronx, NY. In the early morning hours they heard a bang on the door and several police officers rushed into the apartment. The police broke Mr. Figueroa, Sr.'s nose (he is approximately 74 years old). All were arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment and in point of fact no contraband was ever in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

n. On 2/28/14, Damario Morales and Robert Lopez, Jr., were exiting the basement apartment of 766 Union Avenue when all of a sudden several police officers rushed towards them and pushed and pulled them into the apartment and arrested Ms. Morales, Mr. Lopez and all of the occupants of the basement apartment. Neither Ms. Morales nor Mr. Lopez were the leaseholder of the apartment. Both were charged with possession of a controlled substance even though no narcotics were ever found and certainly none were in plain view at anytime. Despite requests a search warrant was never presented. The District Attorney's Office eventually dismissed both cases.

o. On 7/16/15 Fantasia Jenkins was inside apartment 8D located at 595 Trinity Avenue, Bronx, NY. Ms. Jenkins was simply an overnight guest in the apartment. In the early morning hours, all of a sudden several police officers rushed into the apartment and arrested Ms. Jenkins and all of the occupants. Ms. Jenkins was not a leaseholder of the apartment. She was charged with criminal possession of a controlled substance even though narcotics were not found and certainly not

in plain view at anytime. Ms. Jenkins spent 9 days in custody. Despite requests a search warrant was never presented. The District Attorney's Office eventually dismissed Ms. Jenkins' case.

p. On 11/20/14 Jamel McNeil and Magan Paulino were inside a757 St. Anns Avenue, Bronx, NY. Both Mr. McNeil and Ms. Paulino were simply overnight guests in the house. In the late morning hours, all of a sudden several police officers rushed into the house and arrested Mr. McNeil and Ms. Paulino and all of the occupants. Mr. McNeil nor Ms. Paulino were leaseholders, owners or renters of the house but only overnight guests. They were charged with criminal possession of a controlled substance even though narcotics were not found and certainly not in plain view at anytime. Despite requests a search warrant was never presented. The District Attorney's Office eventually dismissed both cases.

67. As is evidenced from the above, Plaintiff **ELLIOT FERNANDEZ'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers.

68. Moreover, it is the direct result of police officers arresting individuals for possession of contraband within a premises when either no such contraband exists or is not in plain view and the nexus between the contraband and the individual being arrested is so lacking that reasonable cause to effectuate the arrest is not present especially in light of the fact when the individual is only a temporary or overnight guest in the premises and is not the leaseholder. The practice is widespread

and pervasive throughout the entire City of New York.

69. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance, arresting individuals when not in possession of a valid search warrant as well as police officers arresting individuals for possession of contraband within a premises when either no such contraband exists or is not in plain view and the nexus between the contraband and the individual being arrested is so lacking that reasonable cause to effectuate the arrest is not present especially in light of the fact when the individual is only a temporary or overnight guest in the premises and is not the leaseholder.

70. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

71. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

72. Some instances where officers were treated as outcasts for reporting misconduct and/or

arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of Transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Kathleens of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Anthony Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

73. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and

searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

74. That the above customs, polices and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **ELLIOT FERNANDEZ**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S polices, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

75. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

76. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

77. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of him constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

78. That by reason of the foregoing, Plaintiff **ELLIOT FERNANDEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIOT FERNANDEZ**

79. Plaintiff **ELLIOT FERNANDEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 78 with the same force and effect as if fully set forth at length herein.

80. At all times mentioned herein and above, defendants CITY and NYPD employed MERCHAN, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

81. Plaintiff **ELLIOT FERNANDEZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

82. That on or about 8/17/23, defendants CITY, NYPD, MERCHAN, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **ELLIOT FERNANDEZ**, did search, seize, assault and commit a battery and grab the Plaintiff **ELLIOT FERNANDEZ** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **ELLIOT FERNANDEZ** during the arrest process in an unlawful and excessive manner. Plaintiff **ELLIOT FERNANDEZ** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

83. The above actions of defendants CITY, NYPD, MERCHAN, DOE and ROE and

ROE resulted in Plaintiff **ELLIOT FERNANDEZ** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

84. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

85. Defendants CITY, NYPD, MERCHAN, DOE and ROE subjected Plaintiff **ELLIOT FERNANDEZ** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **ELLIOT FERNANDEZ'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

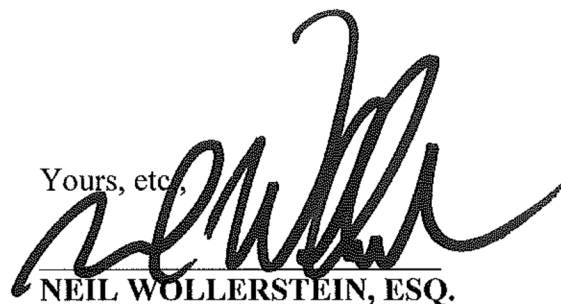
86. The direct and proximate result of the defendants CITY, NYPD, MERCHAN, DOE and ROE acts are that Plaintiff **ELLIOT FERNANDEZ** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

87. That by reason of the foregoing, Plaintiff **ELLIOT FERNANDEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **ELLIOT FERNANDEZ** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Bronx, New York
 April 2, 2024

Yours, etc.,

A large, stylized handwritten signature in black ink, appearing to read 'Neil Wollerstein', is written over the typed name.

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
895 Sheridan Avenue
Bronx, NY 10451
(718) 588-1300

ATTORNEY VERIFICATION

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of the plaintiff.
2. That affirmant has read the foregoing **SUMMONS and VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiff is that the plaintiff is not currently available.

Dated: Bronx, New York
April 2, 2024


NEIL WOLLERSTEIN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ELLIOT FERNANDEZ,

Plaintiff,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE JASON
MERCHAN, POLICE OFFICER JOHN DOE and POLICE OFFICER JOHN ROE**

Defendant(s).

SUMMONS and VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

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